

liability in suits under § 1983 does not leave the public powerless to deter misconduct or to punish that which occurs. This Court has never suggested that the policy considerations which compel civil immunity for certain governmental officials also place them beyond the reach of the criminal law. Even judges, cloaked with absolute civil immunity for centuries, could be punished criminally for willful deprivations of constitutional rights on the strength of 18 U. S. C. § 242,²⁸ the criminal analog of § 1983. *O'Shea v. Littleton*, 414 U. S. 488, 503 (1974); cf. *Gravel v. United States*, 408 U. S. 606, 627 (1972). The prosecutor would fare no better for his willful acts.²⁹ Moreover, a prosecutor stands perhaps unique, among officials whose acts could deprive persons of constitutional rights, in his amenability to professional discipline by an association of his peers.³⁰ These checks undermine the argument that the imposition of civil liability is the only way to insure that prosecutors are mindful of the constitutional rights of persons accused of crime.

²⁸ "Whoever, under color of any law, statute, ordinance, regulation, or custom, willfully subjects any inhabitant of any State, Territory, or District to the deprivation of any rights, privileges, or immunities secured or protected by the Constitution or laws of the United States, or to different punishments, pains, or penalties, on account of such inhabitant being an alien, or by reason of his color, or race, than are prescribed for the punishment of citizens, shall be fined not more than \$1,000 or imprisoned not more than one year, or both; and if death results shall be subject to imprisonment for any term of years or for life."

²⁹ California also appears to provide for criminal punishment of a prosecutor who commits some of the acts ascribed to respondent by petitioner. Cal. Penal Code § 127 (1970); cf. *In re Branch*, 70 Cal. 2d 200, 210-211, 449 P. 2d 174, 181 (1969).

³⁰ See ABA Code of Professional Responsibility § EC 7-13. See generally ABA, Standards, *supra*, n. 24, §§ 1.1 (c), (e), and Commentary, pp. 44-45.